

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

Civil Revision No. 924 of 2020

IN THE MATTER OF:

An application under section 115(1) of the Code of Civil Procedure.

(Against the Impugned Judgment and Order)

And

IN THE MATTER OF:

Md. Nazrul Islam Sarder

--- Preemptor-Respondent-Petitioner.

-versus-

Taher Ali Howlader and others

--- Preemptee & Proforma-Opposite Parties.

Mr. Md. Shahidul Islam with

Mr. Md. Riaz Hossain Sikder, Advocates

--- For the Preemptor-Petitioner.

No one appears

--- For the Preemptee- Opposite Parties.

Heard on: 10.05.2023, 17.05.2023, 18.05.2023,
23.05.2023 & 24.05.2023.

Date of Judgment: 25.05.2023.

At the instance of the present preemptor-respondent-petitioner, Md. Nazrul Islam Sarder, this Rule was issued upon a revisional application filed under section 115(1) of the Code of Civil Procedure calling upon the opposite party No. 1 to show cause as to why the impugned judgment and order dated 16.02.2020 passed by the learned Joint District Judge, Additional Court, Barishal in the Miscellaneous Appeal No. 36 of 2019 allowing the appeal and thereby reversing the judgment and order

dated 14.05.2019 passed by the learned Senior Assistant Judge, Sadar, Barishal in the Miscellaneous Case No. 73 of 2004 allowing the preemption application should not be *set aside*.

The relevant facts for disposal of this Rule, *inter-alia*, are that the present petitioner, Md. Nazrul Islam Sarder, as the preemptor-applicant-petitioner filed the Miscellaneous Case No. 73 of 2004 in the court of the learned Senior Assistant Judge, Sadar, Barishal under section 96 of the State Acquisition and Tenancy Act, 1950 claiming the right of preemption. The plaint contains that land measuring 94 decimals of S. A. Khatian No. 1660 situated in Mouja- Karnakathi, Police Station- Barishal Sadar, Barishal belong to one Raham Ali. Raham Ali was the S. A. recorded owner who transferred the total land to Taher Ali Howlader, Rawshan Ali Sarder, Joyed Ali Howlader and Motaher Ali by a registered deed dated 23.04.1959 and possession was handed over. Motahar Ali sold his share by 2 (two) registered deeds dated 13.09.1972 and 10.09.1973 to the opposite party Nos. 1-3 and handed over the possession of the land and also the land was mutated in their names. Taher Ali sold his total share to Abul Kalam by a registered deed dated 31.12.1992 and handed over the possession. Abul Kalam died leaving behind a son, Al-Amin, a daughter Meherunnessa Begum, a wife Mahamuda Begum, mother Kanchan Bibi and father Abdul Wahab Howlader. Kanchan Bibi and her husband Abdul Wahab

Howlader got $11\frac{1}{2}$ decimals from their son and sold $11\frac{1}{2}$ decimals of land to the preemptor Md. Nazrul Islam Sarder and his brother Md. Alam Sarder on 26.04.2000 and handed over the possession, thus, the preemptor became a co-sharer of the case land as a purchaser and started living after constructing a separate house thereon as well as established a business of Chicken farm. The father of the preemptor-petitioner as the opposite party No. 2, Rawshan Ali Sarder got married thrice in his life duration because of the that preemptor-petitioner as the son started dispute upon his father opposite party No. 2 and started living separately after 2/3 years of his marriage due to bad relation between father and son. In the meantime, the father of the preemptor as the vendor transferred the land on 15.10.2000 to the preemptee, Taher Ali Howlader, beyond the knowledge or without serving any notice to the preemptor. However, the preemptor came to know about the purchase on 12.10.2004 .i.e. while he heard regarding the sale deed of the land through Salam Fakir in the presence of Shahjahan Howlader and Nur Islam and after query the preemptor also obtained the certified copy of the said deed on 21.10.2004 and thereafter filed the instant case.

The case was contested by the present preemptee- opposite party No. 1 by filing a written objection by denying all materials allegations and contending, *inter alia*, that opposite party Nos. 2

and 3 sold their suit property to the opposite party No. 1 by the registered sale deed No. 6126 dated 15.10.2000 which the present petitioner was fully aware of the sale and purchase.

After hearing the parties the learned Senior Assistant Judge, Sadar, Barishal passed the judgment and order in favour of the present preemptor-petitioner on the ground that the petitioner is an admitted co-sharer of the same jot (জোত), as such, he had a right to know about the sale of the said jot (জোত) property. The preemptor-petitioner could not know regarding the said sale or no notice was served under section 89 of the Act, 1950, as such, the preemptor-petitioner is entitled to get the benefit of section 96 of the State Acquisition and Tenancy Act, 1950 and thereby the learned trial court allowed the application as prayed for.

Being aggrieved the preemptee- opposite party No. 1 preferred the Miscellaneous Appeal No. 36 of 2019 in the court of the learned District Judge, Barishal which was subsequently heard by the learned Joint District Judge, Additional Court, Barishal who without applying judicial mind, erroneously allowed the appeal and *set aside* the judgment of the learned trial court.

Mr. Md. Shahidul Islam, the learned Advocate, appearing along with the learned Advocate, Mr. Md. Riaz Hossain Sikder, on behalf of the present preemptor- petitioner submits that the opposite party Nos. 2 and 3 did not issue any notice under section 89 of the

State Acquisition and Tenancy Act, 1950 to the preemptor before sold out the case land on 15.10.2000. Preemptor-petitioner is a co-sharer by purchasing land but the learned appellate court below misconceived of law committed an error in the decision occasioning failure of justice.

The learned Advocate also submits that the law is provided under section 96 of the Act, 1950 and because of that the petitioner filed the instant case within 4 (four) months from the date of knowledge but the appellate court below misdirect the law and facts and erroneously allowed the miscellaneous appeal only on mere surmise and conjecture, as such, the impugned judgment is liable to be *set aside* for the ends of justice.

This matter has been appearing in the daily cause list for a long period of time for hearing but no one appears to oppose the Rule on behalf of the preemptee- opposite parties.

Considering the above submissions made by the learned Advocates appearing for the preemptor-petitioner and also considering the revisional application filed by the preemptor-petitioner under the provision of section 115(1) of the Code of Civil Procedure along with the impugned judgment and order annexed therein and also perusing the essential documents adduced and produced before the learned courts below which are available in the lower courts records, it appears to me that the present preemptor-

petitioner filed the Miscellaneous Case No. 73 of 2004 claiming a right of preemption under section 96 of the Act, 1950 claiming that one co-sharer of the jot (-জাত) sold the case property to a stranger without giving any knowledge or by serving any notice to the preemptor- petitioner. The provision of section 96 of the Act, 1950 requires any sale by a co-sharer of the same jot (-জাত) is obliged to serve notice upon all other co-sharers under section 89 of the said Ain. In the instant case, the land was sold by a co-sharer of the jot (-জাত) to Taher Ali Howlader without serving any notice under the Ain and selling the case land could not be known to the petitioner under section 96 of the Act, 1950 which has violated the right accrued by the preemptor-petitioner in the present case.

I have also noticed that the alleged sale by the co-sharer to an outsider of the jot (-জাত) on 15.10.2000 is barred by limitation and bad for defect of parties but the preemptor-petitioner could not have any knowledge before obtaining the certified copy and after receiving the certified copy of the said the petitioner has awarded. The law requires a notice to serve within the framework of section 96 from the date of sale or the date of knowledge about the sale. In this regard, I have considered the depositions adduced and produced by the parties and came to learn and filed a suit by the petitioner within 4 (four) months from the date of knowledge. In the instant case, the certified copy was withdrawn on 21.10.2004.

The preemptor-petitioner could know about the sale on 12.10.2004 through Salam Fakir and ensured himself by obtaining a certified copy thereof. This fact was not aware to the petitioner or the petitioner was not aware of any. It appears that Taher Ali Howlader is a partner by purchase but Nazrul is a original owner of purchase and S. A. Record was made in his nane.

In the above circumstances, this court considered that no requirement was complied with by the vendor (co-sharer) to the preemptor but a preemptor right was acquired whenever getting the knowledge of the preemptor regarding the sale of the same and he filed a case thereafter.

Now, I am going to examine the judgments and orders passed by the learned courts below:

The learned trial court came to a lawful conclusion in order to allow the preemption right under section 96 of the Ain, 1950 on the basis of the following findings:

...“আদালতের এলাকা ও কোর্টফির পরিমান নির্ণয়ার্থে অগ্রক্রয়ের নিমিত্তে তর্কিত দলি-লর ব্যয় মূল্য মং ৭,০০০/- টাকা এবং তৎসহ ক্ষতিপূরণ ৭০০/- টাকা একু-ন ৭,৭০০/- টাকা অত্রসহ ২৯/১১/২০০৪ তারি-খর ১৩৯ নং চালানে দাখিলসহ মোকদ্দমা দায়েরের নিমি-ত্ত ঠিকা মং ২০০/- টাকার কোর্টফি প্রদানে অত্র মোকদ্দমা দায়ের করা গেল।

নালি-শর কারণঃ অত্রাদালতের এলাকাধীন কর্ণকাঠী মৌজার তর্কিত দলিল ভুক্ত সম্পত্তি সম্পর্কে ইং ১২/১০/২০০৪ তারিখে অনিচ্ছাকৃতভাবে জ্ঞাত হইয়া ইং ২১/১০/২০০৪ তারি-খ উহার সহি মোহর নকল প্রা-প্ত সঠিকতা-ব জ্ঞাত হওয়ার তারিখ অতীতে উদ্ভব হইয়াছে।”...

On the other hand, the learned appellate court below came to a wrongful conclusion in favour of the present preemptee-opposite party No. 1 and found about the sale as they are father and son and found against preemptor-petitioner on the basis of the following findings:

...“But Pt.W-2 admitted that there is a road in the disputed land i.e. he admitted the claim of the appellant. So, it can be decided that after increasing the value of transferred land due to building the road by the appellant/opposite party No. 1 petitioner/ respondent No. 1 *malafidely* filed the original case. Learned sub-ordinate court did not properly consider the relationship between petitioner and opposite party No. 2 and other circumstances which were very erroneous.”...

I have carefully examined the two conflicting judgments and found that the learned trial court below committed no error of law by allowing the miscellaneous case to create a right of preemption under section 96 of the Act, 1950. Under the provision of law the right has already been created by the petitioner upon transfer of the case land to a stranger of the original owner purchaser of the suit land, as such, this is a proper case for interference from this court upon the impugned judgment and order passed by the learned appellate court below.

In view of the above discussions as well as in view of the provision of section 96 of the Act, 1950 I am of the opinion that the

learned trial court committed no error of law by allowing the miscellaneous case No. 73 of 2004 on contest with the preemptee-opposite party No. 1. However, the learned appellate court below came to a wrongful conclusion by passing the impugned judgment and order by some misreading of the evidence adduced and produced by the parties and committed an error of law, as such, this is a proper case to be interfered by this court, as such, this Rule merits for further consideration and I am inclined to interfere upon the impugned judgment and order passed by the learned appellate court below i.e. the learned Joint District Judge, Additional Court, Barishal.

Accordingly, I find merit in this Rule.

In the result, the Rule is hereby made absolute.

The impugned judgment and order dated 16.02.2020 passed by the learned Joint District Judge, Additional Court, Barishal in the Miscellaneous Appeal No. 36 of 2019 allowing the appeal and thereby reversing the judgment and order dated 14.05.2019 passed by the learned Senior Assistant Judge, Sadar, Barishal in the Miscellaneous Case No. 73 of 2004 allowed the preemption application under section 96 of the State Acquisition and Tenancy Act is hereby *set aside*.

The judgment and order dated 14.05.2019 passed by the learned Senior Assistant Judge, Sadar, Barishal in the

Miscellaneous Case No. 73 of 2004 allowing the preemption application under section 96 of the State Acquisition and Tenancy Act, 1950 is hereby upheld.

The interim direction passed at the time of issuance of this Rule to maintain the *status quo* by the respective parties in respect of the possession and position of the suit land and subsequently the same was extended till disposal of the Rule is hereby recalled and vacated.

The concerned department of this Court is hereby directed to send down the lower courts' records along with a copy of this judgment and order to the lower courts concerned as early as possible.